



Vision

"To be a global leader in promoting good corporate governance"

Motto

सत्यं वद। धर्मं चर। इष्टं कुरु। तृप्तये।

Mission

"To develop high calibre professionals facilitating good corporate governance"

Info Capsule

Wednesday, December 24, 2025

President

CS Dhananjay Shukla

Vice President

CS Pawan G Chandak

❖ **Insolvency and Bankruptcy Board of India**

Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) (Seventh Amendment) Regulations, 2025 (December 22, 2025)

Insolvency and Bankruptcy Board of India have issued the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) (Seventh Amendment) Regulations, 2025 dated December 22, 2025, which has come into force on the date of their publication in the Official Gazette. According to the amendment in regulation 38, following sub-regulation has been inserted:

"(3A) Every resolution plan shall include:

- (a) a statement of beneficial-ownership, in a format to be notified through circular by the Board, covering details of all natural persons who ultimately owns or controls the resolution applicant, together with the shareholding structure and jurisdiction of each intermediate entity; and
- (b) an affidavit, in a format specified by the Board, that the resolution applicant is eligible/not eligible for the benefit of section 32A."

For details:

<https://ibbi.gov.in/uploads/legalframework/f1f3b9db9d37ed015454d3c1b6d00fc7.pdf>

❖ **IFSCA**

Press release: IFSCA Authority Meeting (December 23, 2025)

The 26th meeting of the IFSCA Authority (Authority) was held on December 22, 2025. The Authority, inter alia, approved the following:

- i) Amendments to IFSCA (Fund Management), Regulations, 2025
 - a. Eligibility Criteria for Key Managerial Personnel (KMPs)
 - b. Validity of Private Placement Memorandum (PPM) of Schemes
 - c. Appointment of Custodian registered with IFSCA
- ii) IFSCA Authority (Global-In-House Centre) Regulations, 2025
- iii) IFSCA (Book-keeping, Accounting, Taxation and Financial Crime Compliance Services) (Amendment) Regulations, 2024
- iv) IFSCA (Capital Market Intermediaries) (Amendment) Regulations, 2025
- v) Amendment to IFSCA (Registration of Business) Regulations, 2021

For details:

https://ifsc.gov.in/CommonDirect/GetFileView?id=38fea9cc5969551d78bf00e670af9cad&fileName=Press_Release_20251223_0207.pdf&TitleName=Press%20Release

❖ **Reserve Bank of India**

RBI announces OMO Purchase of Government of India Securities (December 23, 2025)

As announced vide the Press Release 2025-26/1759 dated December 23, 2025, the Reserve Bank will be conducting OMO purchase for an aggregate amount of ₹50,000 crore on December 29, 2025. Accordingly, the Reserve Bank will purchase the mentioned Government securities through a multi-security auction using the multiple price method. Eligible participants should submit their offers in electronic format on the Reserve Bank of India Core Banking Solution (E-Kuber) system between 9:30 am and 10:30 am on December 29, 2025.

The result of the auction will be announced on the same day and successful participants should ensure availability of securities in their SGL account by 12 noon on December 30, 2025.

For details:

https://www.rbi.org.in/Scripts/BS_PressReleaseDisplay.aspx?prid=61876

❖ **ESG Update**

NVIDIA Corporation

Sustainability:

- Investors: NVIDIA host quarterly calls with investors to discuss corporate sustainability topics.
- Startups: Its Inception program includes startups focused on climate and energy.
- Customers: NVIDIA respond to customer CDP and EcoVadis requests.
- Community: NVIDIA and the company contribute through the NVIDIA Foundation.
- Supply Chain: NVIDIA conduct quarterly business reviews with strategic suppliers.
- Governments: It brief regulators and thinktanks on topics related to AI.

For details: *For details: <https://images.nvidia.com/aem-dam/Solutions/documents/FY2024-NVIDIA-Corporate-Sustainability-Report.pdf>*

❖ **Competition Commission of India**

Commission approves acquisition of certain warrants of Federal Bank Limited by Asia II Topco XIII Pte. Ltd. (December 24, 2025)

The proposed combination envisages acquisition of certain warrants by Asia II Topco XIII Pte. Ltd. (Acquirer), each carrying a right to subscribe to one fully paid-up equity share of Federal Bank Limited (Target). Upon full exercise of the warrants, the Acquirer will hold 9.99% of the paid-up share capital of the Target, on a fully diluted basis. The Acquirer will have the right to nominate a director on the Target's board (as long as the Acquirer holds at least 5% of the paid-up share capital of the Target). The Acquirer is controlled by funds advised and / or managed by affiliates of Blackstone Inc. The Target is a private sector commercial bank in India and offers a wide range of products and services, such as deposits, loans, payment services, etc.

For details: <https://www.cci.gov.in/media-gallery/press-release/details/604/0>

❖ **Ministry of Finance**

India and New Zealand conclude Free Trade Agreement Negotiations on Financial Services, a part of Annex to the Trade in Services Chapter (December 23, 2025)

India and New Zealand have concluded negotiations on the Financial Services Annex of the India-New Zealand Free Trade Agreement (FTA) on 22nd December, 2025. This marks a significant milestone in strengthening bilateral economic and strategic cooperation. This landmark achievement was finalized during the last round of negotiations held on December 10, 2025. India and New Zealand share a robust commitment to strengthen bilateral cooperation in the financial services sector. This FTA will provide the necessary institutional and regulatory framework to accelerate bilateral collaboration, facilitate market access and catalyze deeper integration of the two economies' financial systems.

For details: <https://www.pib.gov.in/PressReleasePage.aspx?PRID=2207641®=3&lang=1>

❖ **Business and Economics**

National Consumer Day: "Efficient and Speedy Disposal through Digital Justice" (December 23, 2025)

National Consumer Day is observed in India on 24 December each year to highlight the significance of consumer rights and the broader framework of consumer protection. It was on this day that the Consumer Protection Act, 1986, received the President's assent, establishing a comprehensive set of rights for consumers. These include the right to be protected, the right to be informed, the right to be assured, the right to be heard, the right to seek redressal, and the right to consumer awareness. The observance aims to raise awareness and promote responsible practices among consumers and other stakeholders. In 2025, National Consumer Day is guided by the theme "Efficient and Speedy Disposal through Digital Justice," reflecting India's continued focus on technology-enabled, accessible, and timely consumer grievance redressal.

For details: <https://www.pib.gov.in/PressReleasePage.aspx?PRID=2207673®=3&lang=1>

❖ **Pronouncement**

November 20, 2025	Roop Ultrasonix Limited (Appellants) Versus Telsonic Holdings AG(Respondent)	National Company Law Appellate Tribunal Company Appeal (AT) No.187 of 2023
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Brief Facts

The main Appellant Roop Ultrasonix Ltd. is an unlisted company. The Respondent, Telsonic Holding AG, a foreign body corporate holds shares in the Appellant company. The Respondent has been identified as a “promoter” in the annual returns up to 31.03.2022. Through a board resolution dated 09.11.2022, the Respondents were reclassified as “public shareholder/other than promoter”. The right issue was launched by the Appellant in the month of March, 2023 wherein the Respondents have applied but their application was rejected as their shares were not held in the dematerialised form. Aggrieved by the said actions, Telsonic Holding AG (Respondent) had filed CA No. 102 of 2023 on which the impugned order was passed wherein the Ld. NCLT held that the entire process of issuance of equity shares in rights issue stands vitiated and was set aside and directions were issued to Roop Ultrasonix Ltd. to refund the amount received in the rights issue. Thereafter, Appellant approached to NCLAT.

Legal Provisions

Rule 9A of the Companies (Prospectus and Allotment of Securities) Rules, 2014, which is as under:

9A. Issue of securities in dematerialised form by unlisted public companies.

(1) Every unlisted public company shall – (a) issue the securities only in dematerialised form; and (b) facilitate dematerialization of all its existing securities. in accordance with provisions of the Depositories Act, 1996 and regulations made there under.

(2) Every unlisted public company making any offer for issue of any securities or buyback of securities or issue of bonus shares or rights offer shall ensure that before making such offer, entire holding of securities of its promoters, directors, key managerial personnel has been dematerialised in accordance with provisions of the Depositories Act 1996 and regulations made there under.

(3) Every holder of securities of an unlisted public company, (a) who intends to transfer such securities on or after 2nd October, 2018, shall get such securities dematerialized before the transfer; or (b) who subscribes to any securities of an unlisted public company (whether by way of private placement or bonus shares or rights offer) on or after 2nd October, 2018 shall ensure that all his existing securities are held in dematerialized form before such subscription.

(4)

Judgement

Hon'ble NCLAT inter alia observed that as per Rule 9A(2) every unlisted public company before issuing fresh shares is required to ensure that entire holding of securities of its promoters, directors, and key managerial personnel has been dematerialised in accordance with provisions of the Depositories Act, 1996. As we have noted earlier, the Respondent (Telsonic) was no longer classified as ‘promoter’ of the Appellant Company on the date when rights issue was announced. Thus, a plain reading of the said Rule clearly shows that the company was not required to ensure, on its own, that shares of the Respondent (Telsonic) are dematerialised.

As per Rule 9A(3)(b), it is responsibility of the holder of securities of an unlisted company to ensure that all its/his existing securities are in dematerialised form before any fresh subscription. Here, the role of the Appellant Company is only to facilitate dematerialisation of all existing securities as per Rule 9A(1)(a). Thus, for shareholders other than promoters, directors and key managerial personnel, the responsibility of the Appellant Company, as prescribed in Rule 9A(1)(b) is limited to “facilitation” of dematerialization. The steps required in “facilitation” of the process are listed in sub rules (4) to (8A) of Rule 9A. It is not the case of the Respondent (Telsonic) that it had applied for dematerialisation which was blocked by the Appellant Company. Apparently, Telsonic had never applied for dematerialization of its shares. NCLAT noted that as per Rule 9A(1)(a) every unlisted public company is required to issue the securities “only” in dematerialised form. Since the shares of Telsonic were not in dematerialized form, the act of Appellant Company in rejecting the application of the Respondent is fully in consonance with Rule 9A(1)(a) of the Rules cited supra.

NCLAT held that on the basis of above noted facts and law that the impugned order of Ld. NCLT cannot be sustained and the Ld. NCLT has erred in cancelling the rights issue and directing refund of share application money. The impugned order is thus set aside.

DECRIMINALISATION OF OFFENCES - EMERGING TRENDS IN ADJUDICATION



About the Book

Diligence, Compliance and Good Governance have always been looked through the lens of absence of non-compliance or default. The law while enlisting the provision for actions to be undertaken and procedures to be followed under different circumstances and situations has been equally wary of the scenarios wherein such compliances may not be made in true letter and spirit. Hence, the outline of punishments in the form of fines & penalties and imprisonment also in certain cases, depending on the severity of default. However, the downside of such punishments is that where criminal prosecution is provided for non-compliance of procedural requirements, it acts as a roadblock in attracting investment. Severe punitive measures for technical nature offences tend to hinder investment both from domestic and foreign investors. Criminalizing procedural lapses and minor non-compliances increases burden on businesses only.

Year of Publication: 2024

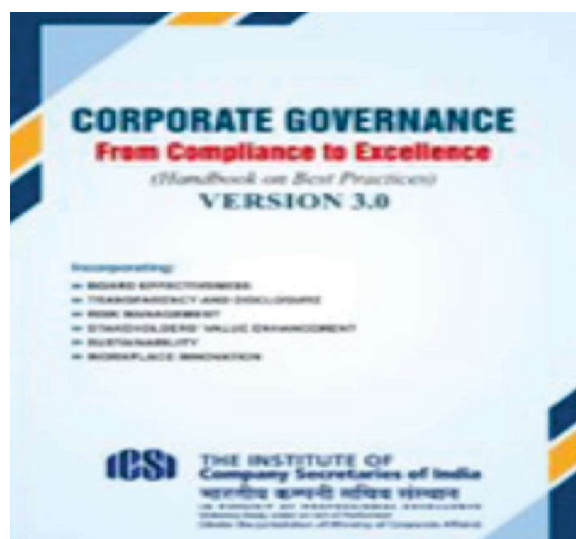
Price: Rs. 450/-

For Subscription:

<https://smash.icsi.edu/Scripts/ECart/Default/ItemWiseECartSearchOnlineBooks.aspx?ItemId=327>



CORPORATE GOVERNANCE - FROM COMPLIANCE TO EXCELLENCE



About the Book

The ICSI in its endeavour to identify, foster and reward the best practices of corporate governance among Indian companies had instituted "The ICSI National Awards for Excellence in Corporate Governance" in the year 2001. Based on the analysis of the governance practices adopted by the companies which participated in these Awards in 2021, ICSI rolled out a publication titled 'Corporate Governance – From Compliance to Excellence (Handbook on Best Practices)' in the year 2022.

The publication highlights the governance practices adopted in aspects like Board effectiveness, Transparency and Disclosure, Risk Management, Stakeholders' Value Enhancement, Sustainability and Workplace Innovation.

Year of Publication: 2024

Price: Rs. 1250/-

For Subscription:

<https://smash.icsi.edu/Scripts/ECart/Default/ItemWiseECartSearchOnlineBooks.aspx?ItemId=317>



❖ Market Watch

Stock Market Indices as on 24.12.2025		Foreign Exchange Rates as on 24.12.2025 (https://m.rbi.org.in/scripts/ReferenceRateArchive.aspx)			
S & P BSE Sensex	85,408.70 (-0.14%)	INR / 1 USD	INR / 1 EUR	INR / 1 GBP	INR / 1 JPY
Nifty 50	26,142.10 (-0.13%)	89.77	105.94	121.36	.57

Prepared by Directorate of Academics

For any suggestions, please write to academics@icsi.edu.

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